

Amendment No. 1 to HB2140

Farmer
Signature of Sponsor

AMEND Senate Bill No. 2265

House Bill No. 2140*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 39-14-113(d), is amended by adding the following as a new subdivision:

(4)

(A) Any sentence imposed for a violation of subsection (c) shall include a mandatory minimum sentence of thirty (30) days incarceration if the defendant used or possessed a firearm, firearm ammunition, a firearm-related device, or an anti-theft device during the commission of the offense.

(B) As used in this subdivision (d)(4):

(i) "Anti-theft device" means any device, tool, machine, implement, or other item used to unlawfully deactivate, circumvent, interfere with, remove, or otherwise render inoperative a monitor, sensor, camera, or other security device used or designed to prevent or deter the theft of retail merchandise; and

(ii) "Firearm-related device" includes, but is not limited to, a firearm scope, a firearm silencer, and any part or combination of parts designed or intended solely for use in converting a firearm into a machine gun.

SECTION 2. Tennessee Code Annotated, Section 39-14-113(c)(1), is amended by deleting "ninety-day" and substituting "one-hundred-eighty-day".

SECTION 3. Tennessee Code Annotated, Section 39-14-113(c), is amended by adding the following as new subdivisions:

(11) Knowingly uses a mask, facial covering, or other concealment of the person's identity to facilitate the commission of an offense under this subsection (c); or

(12) Knowingly uses a motor vehicle with no license plate; an altered, fake, or concealed license plate; or a temporary license plate to facilitate the commission of an offense under this subsection (c).

SECTION 4. This act takes effect July 1, 2026, the public welfare requiring it, and applies to acts committed on or after that date.